cases, and other the like, (‡) the law will never make any fiction, but for necessity, and in avoidance of a mischief; for if the vouchee should not be tenant as to the demandant, or that the tenant after the feoffment should not be, as to the demandant, tenant of the land, the demandant in the one case and the other could never have the effect of his suit, but would be for ever delayed; and in the latter case, notwithstanding the feoffment, the donee shall remain tenant as to him, and of necessity he shall (*a*) avow for his rent upon him, for he cannot avow upon the discontinuee, for then upon his own shewing, the reversion, to which the rent is incident, would be devested out of him by the feoffment, and by consequence he cannot maintain his avowry for the rent; and therefore for necessity he shall avow upon the donee (Y); and his feoffment (†), which is his own act, and by which wrong is done, shall not avail him to bar the donor of his rent, for a man shall never take benefit of his own wrong, and that is (as to this point) as it seems to me the better opinion of the books. As to the statutes of 32 and 34 H. 8. it was resolved, (‡) that after the statute of 27 H. 8. and before the statute of 32 H. 8. the manor of Thoby was not devisable; and because the said William Barners the devisor had not followed the power and authority which the statute of 32 H. 8. (and the statute of 34 H. 8. which explains it) gave him, it was resolved, that the will was void for part of the manor of Thoby. And that was collected on four parts of the said Acts, the effect of which I have abridged as follows:

The first branch of the Act of 34 H. 8.

"1. That all and every person, having a sole estate in fee-simple of any manors holden in chief, &c. shall have full and free liberty, power, and authority, to give and dispose, by his last will in writing, as much as in him of right, as much of, &c. as shall amount to the full and clear yearly value of two parts in three parts to be divided."

The second branch.

"2. The same division to be set out by the devisor, owner, or in default thereof, by commission to be granted out of the Court of Wards."

The third branch.

"3. And that the King shall take for his full third part, such manors, &c. of estate of inheritance, as well in fee tail as in fee simple, as shall descend, or come by descent, &c. immediately after the death of such devisor."

The fourth branch.

"4. And in case the manors, &c. which shall immediately after his death descend, &c. shall not extend to the value of a full third part, the King may take, &c. to make up, &c."

And on these four parts it was concluded for divers notable **[30 b]** reasons, that the devisor had not power to devise the whole manor of Thoby by force of the said statutes; and to this purpose four reasons were collected on the said first branch.

(§) First, on this word "having;" and therefore if it be asked, *quis potest legare?* the makers of the Act answer, every person having manors, &c. so that it is not said every person generally, but every person having, &c. And this word "having" imports

(‡) [3 Bl. Com. 43. Vin. Abr. Fictions A. pl. 5.]

(*a*) Hob. 337. Co. Lit. 269 a. Cro. Car. 428. 430. Plowd. 561 a. 48 E. 8 b. [Vin. Abr. Estate F. a. pl. 14.]

(Y) But when tenant in tail suffers a common recovery, or levies a fine, the avowry together with the right of intail ceases, Hob. 337. (ED.)

(†) [Co. Lit. 76 a. b. 78 a.]

(‡) [Vin. Abr. Devise. I. 4. pl. 4.]

(§) Rep. Q. A. 106. 122, 123, &c. [1 Saund. 277 a. n. 1 Salk. 237, 238. 3 Burr. 1490. 3 T. R. 90, 91. Gilb. Debt. 1081. Pow. Dev. 105, &c. Shep. Touch. 438. Prest. Watk. Conv. 212. Vin. Abr. Devise I. 3. pl. 10. I. 4. pl. 4. Com. Dig. Devise M. Bac. Abr. Legacies and Devises A. iv. 246.]

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